

The Director, National Institute of Design (Recruitment, Salary, Allowances and other Condition of Service) Rules, 2015

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The Director, National Institute of Design (Recruitment, Salary, Allowances and other Condition of Service) Rules, 2015

Rule

THE-DIRECTOR-NATIONAL-INSTITUTE-OF-DESIGN-RECRUITMENT-SALARY-ALLOWANCES-AND-OTHER-CONDITION-OF-SERVICE-RULES-2015 of 2015

Published on 12 November 2015

Commenced on 12 November 2015

[This is the version of this document from 12 November 2015.]

[Note: The original publication document is not available and this content could not be verified.]

The Director, National Institute of Design (Recruitment, Salary, Allowances and other Condition of Service) Rules, 2015

Published vide Notification No. G.S.R. 852(E), dated 12th November, 2015

Ministry of Commerce and Industry

(Department of Industrial Policy and Promotion)

G.S.R. 852(E). - In exercise of the powers conferred by clause (a) of sub-section (2) of section 38 read with sub-section (1) of section 18 of the National Institute of Design Act, 2014 (18 of 2014), the Central Government hereby makes the following rules, regulations, the method of recruitment, salary, allowances, and other conditions of service for the post of

Director in the National Institute of Design, Ahmedabad namely:-

1.

Short title and commencement.

(1)

These rules may be called the Director, National Institute of Design (Recruitment, Salary, Allowances and other Condition of Service) Rules, 2015.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

(1)

In these rules, unless the context otherwise requires,-

(a)

'Act' means the National Institute of Design Act, 2014 (18 of 2014);

(b)

'Chairman' means the Chairman of the Governing Council of the National Institute of Design;

(c)

'Director' means the Director of the National Institute of Design;

(d)

'Institute' means the National Institute of Design;

(e)

'Selection Committee' means a Selection Committee constituted by the Central Government under sub-section (2) of section 18 of the Act.

(2)

Words and expressions used and not defined in these rules, but defined in the National Institute of Design Act, 2014 shall have the same meanings respectively assigned to them in that Act.

3.

Education qualifications, experience etc. for appointment of Director.

- A person shall not be appointed as Director, unless he. -

(a)

has Masters Degree in Engineering or Technology or Design;

(b)

should have minimum of fifteen years experience in teaching or Industry or Research;

(c)

should have proven record of significant contributions made in the field of Technology or design with national or international exposure.

4.

Method of Appointment.

(1)

Recruitment to the post of Director shall be made by a Selection Committee constituted by the Central Government.

(2)

The Selection Committee shall follow its own procedure for recommending a suitable person for the post of Director.

5.

Disqualification.

- No person,-

(a)

who has entered into or contracted a marriage with a person having a spouse living, or

(b)

who having a spouse living, has entered into or contracted a marriage with any person, shall be eligible for appointment to the said post:

Provided that the Central Government may, if satisfied that such marriage is permissible under the personal law

applicable to such person and the other party to the marriage and that there are other grounds for so doing, exempt any person from the operation of this rule.

6.

Power to relax.

- Where the Central Government is of the opinion that it is necessary or expedient so to do, it may, by order, for reason to be recorded in writing and in consultation with the competent authority, relax any of the provisions of these rules with respect to any class or category of persons.

7.

Term of office.

- The Director shall hold the office for a term of five years from the date on which he enters upon office or attains the age of sixty years whichever is earlier.

8.

Resignation and termination.

(1)

The Director shall give three months prior notice in writing to the Chairman, if he intends to resign from the post: Provided that the Director shall, unless he is permitted by the Central Government to relinquish the post sooner, continue to hold the post until the expiry of the period of notice or until the time a person duly appointed as his successor joins or until the expiry of his term, whichever is earlier.

(2)

The Central Government may, remove a person from the post of Director -

(a)

who has been adjudged an insolvent; or

(b)

who has been convicted of an offence which, in the opinion of the Central Government, involves moral turpitude; or

(c)

who has become physically or mentally incapable of acting as Director; or

(d)

who has acquired such financial or other interest as is likely to affect prejudicially his functions as Director; or

(e)

who has so abused his position as to render his continuance in the post prejudicial to the public interest, or

(f)

on ground of misconduct, misbehaviour or incapacity:

Provided that the Director shall not be removed on any of the grounds specified in clauses (b) to (f) without giving him a reasonable opportunity of being heard and holding an enquiry in this regard by a Committee constituted by the Central Government

9.

Head Quarter or place of posting.

- The headquarter of the Director shall be at Ahmedabad, Gujarat.

10.

Salary, allowances etc. of the Director.

- The Director shall be entitled to a monthly salary in PB - 4, Rs. 37400 - 67000 plus grade pay of Rs. 10,000 and to such allowances and other benefits, as are admissible to an officer of the Central Government in the same grade pay:

Provided that in case a person appointed as a Director, is in receipt of, or has received or has become entitled to receive any retirement benefits by way of pension, gratuity, employers contribution to the Contributory Provident Fund or other form of retirement benefits, the pay of such Director shall be reduced by the gross amount of pension or employers contribution to the Contributory Provident Fund or any other form of retirement benefits, if any (except pension equivalent of gratuity), drawn or to be drawn by him:

Provided further that neither the salary and allowances nor the other terms and conditions of service of the Director shall be varied to the disadvantage after his appointment.

11.

Travelling Allowances.

- The Director, while on tour or on transfer (including the journey undertaken to join National Institute of Design or on the expiry of his term with the National Institute of Design to proceed to his home town) shall be entitled or travelling allowance etc., as are applicable to an officer of equal status of the Central Government.

12.

Leave Sanctioning Authority.

- The Chairman shall be the leave sanctioning authority of Director.

13.

Official visits abroad.

- Official visits abroad by the Director shall be undertaken only in accordance with orders issued by the Chairman and with the approval of Central Government, and he shall be entitled to draw such allowances in respect of such visits at the same rates as are applicable to an officer of equal status of the Central Government.

14.

Facility for medical treatment.

- The Director shall be entitled to medical treatment and hospital facilities as provided in the Central Health Services and in places where Central Health Services are not in operation, Director shall be entitled to the facilities as provided in the Central Services (Medical Attendance) Rules, 1954.

15.

Accommodation.

- The Director shall be entitled for residential accommodation as applicable to an officer of equal status of the Central Government.

16.

Facility of conveyance.

- The Director shall be entitled for conveyance facilities as admissible to an officer of equal status of the Government of India.

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